

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
d/b/a COLONIAL MOBILE MANOR,

Plaintiff,

vs.

Case No. 2023-CC-

CARMEN ROSARIO NIEVES and
ANY UNKNOWN TENANT(s),

Defendants.

**COMPLAINT SEEKING EVICTION, DAMAGES
AND OTHER RELIEF**

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, d/b/a COLONIAL MOBILE MANOR, sues the Defendants, CARMEN ROSARIO NIEVES a/k/a ROSARIO CARMEN NIEVES and ANY UNKNOWN TENANT(s), in possession of certain premises more fully described below, and alleges:

COUNT I
ACTION FOR POSSESSION

1. This is an action for removal of mobile home park lot tenants and possession of the real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.

2. Plaintiff is a limited liability company owning and operating a mobile home park located in Manatee County, Florida.

3. Defendant, CARMEN ROSARIO NIEVES, is a natural person believed to own or claim an interest in a mobile home located at 900 - 9th Avenue East, Lot #53, Palmetto, Manatee

County, Florida, 34221.

4. Defendant, ANY UNKNOWN TENANT(s), may reside on real property at 900 9th Avenue East, Lot #53, Palmetto, Manatee County, Florida, 34221, but if so, does without the consent of the Plaintiff.

5. Plaintiff owns, in fee, the real property located at 900 - 9th Avenue East, Palmetto, Florida, 34221, doing business as COLONIAL MOBILE MANOR.

6. Plaintiff, as landlord, leased to Defendant, CARMEN ROSARIO NIEVES , Lot #53 of the above stated mobile home park at a monthly rental fee of \$657.50 for a term of one (1) year, pursuant to Florida Statute §723.031. The Defendant owes lot rent for the month of December 2022 in the sum of \$1,439.07, which sum includes late fees incurred, pursuant to the Prospectus and Rules and Regulations of Plaintiff.

7. Defendant, CARMEN ROSARIO NIEVES, is in default in the rental agreement with Plaintiff by failure to pay the total sum of \$1,439.07 as of December 6, 2022.

8. On December 6, 2022, Plaintiff served on Defendants, CARMEN ROSARIO NIEVES and ANY UNKNOWN TENANT(s), VIA POSTING, a Five Day Notice of Termination of Tenancy for Nonpayment of Rent. A copy of this Notice is attached and marked Plaintiff's Exhibit "A".

9. On December 6, 2022, Plaintiff also served upon the residence of 900 9th Avenue East, Lot 53, Palmetto, Florida 34221), a Five Day Notice of Termination of Tenancy for Nonpayment of Rent by Certified Mail Return Receipt Requested. A copy of this Notice is attached and marked Plaintiff's Exhibit "B" accompanied by a copy of the certified mail receipt for the same Defendants, CARMEN ROSARIO NIEVES and ANY UNKNOWN TENANT(s).

10. ANY UNKNOWN TENANT(s), may reside or have an interest in Lot #53 of COLONIAL MANOR MHC HOLDINGS, LLC but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

11. Pursuant to the lease and Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of attorney fees.

12. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, CARMEN ROSARIO NIEVES and ANY UNKNOWN TENANT(s), and such other and further relief as the Court may deem proper.

COUNT II
ACTION FOR DAMAGES (RENTAL)

13. This is an action seeking less than \$30,000.00 excluding costs, interest and attorney fees.

14. Plaintiff re-alleges the facts contained within paragraphs 1 through 12 as though fully set forth herein.

15. In addition to the rent that Plaintiff has demanded be paid, for the months of October, November and December of 2022, Defendant also owes rent for the months of January 2023 (657.50), January 2023 late fees (45.00), rent for February 2023 (\$657.50), February late fees(45.00), unpaid water and sewer through December 2022 (\$120.04), late fees (\$10.00), and accruing water and sewer expenses.

16. Defendant, CARMEN ROSARIO NIEVES, owes the Plaintiff the sum of

\$2,974.11 plus interest, costs, continuing rent, continuing water/sewer fees and a reasonable attorney fee.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, CARMEN ROSARIO NIEVES, for damages, costs, and attorney's fee's.

COUNT III
ACTION TO ENFORCE LANDLORD'S LIEN

17. This is an action seeking to enforce a landlord's lien pursuant to Sections 713.691 and 713.77 of Florida Statutes.

18. The Plaintiff re-alleges the facts contained within paragraphs 1 through 12 and paragraph 15 as though fully set forth herein.

20. Defendant, CARMEN ROSARIO NIEVES a/k/a ROSARIO CARMEN NIEVES, is the registered owner of a *1970 Unknown make Unknown Model single-wide mobile home, Vehicle Identification No. 41G5012C1N13892, Title No. 0004132170*, which is located on Lot #53 of the property leased by the Plaintiff to the Defendants.

21. The Plaintiff is entitled to a landlord's lien against said mobile home to enforce its judgment against Defendants for unpaid rent, utility bills, late fees, court costs and a reasonable attorney fee for the pursuit of this eviction and for related relief.

22. The Plaintiff claims entitlement to enforce its lien against said mobile home by judicial sale pursuant to Florida Statute §45.031.

23. Upon Plaintiff being entitled to credit toward the purchase of the mobile home in the sum representing all of Plaintiff's judgment against the Defendants, CARMEN ROSARIO NIEVES and ANY UNKNOWN TENANT(s), it will have perfected its landlord lien against the personal property of Defendants, namely a *1970 Unknown make Unknown Model single-wide*

mobile home, Vehicle Identification No. 41G5012C1N13892, Title No. 0004132170 to which Plaintiff is entitled to sell to satisfy its judgment against Defendants.

24. The Plaintiff is entitled to credit toward the purchase of said mobile home in the sum representing all of Plaintiff's judgment against the Defendants, CARMEN ROSARIO NIEVES and ANY UNKNOWN TENANT(s), all costs of this proceeding and reasonable attorney's fees.

WHEREFORE, the Plaintiff prays this Honorable Court enter an order, ordering a judicial sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days from the rendition of judgment in the above-styled cause, and to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid balance of the Plaintiff's judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Eviction, Damages and Other Relief has been furnished to a private process server for service upon the Defendants, CARMEN ROSARIO NIEVES and ANY UNKNOWN TENANT(s), at their last known address of 900 - 9th Avenue East, Lot #53, Palmetto, Florida, 34221, on this 24 day of February, 2023.

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